BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per
bnn.cdl@gmail.com

June 16, 2026

VIA EMAIL (blaze@sims-law.net; slb-eservice@sims-law.net)

Blaze Van Dine, Esq.
Sims, Lawrence & Broghammer
1478 Stone Point Drive, Suite 450
Roseville, CA 95661

Re:

Newanforbi v. Palacios et al.
San Joaquin Superior Court Case No. STK-CV-UF-2026-0001032
MEET-AND-CONFER RE: DEFICIENT DISCOVERY RESPONSES

Dear Mr. Van Dine:

I write pursuant to Code of Civil Procedure sections 2030.300(b) and 2031.310(b)(2) to identify specific deficiencies in the discovery responses served on behalf of Defendant HOPE Psychotherapy, Inc. ("HOPE") and Defendant Katie Palacios ("Palacios") on June 8, 2026 (RFAs) and June 15, 2026 (Special Interrogatories, Form Interrogatories, and Requests for Production). I am requesting further responses and production as described below. If we are unable to resolve these issues informally, I intend to file motions to compel further responses.

I have attempted to organize this letter by category to facilitate your review. I am available by email to discuss any of these items. If your clients are willing to provide supplemental responses on any of these issues, I am happy to take those items off the table.

I am requesting supplemental responses within eight (8) days of this letter—that is, by **June 24, 2026**. If you need additional time to confer with your clients, please let me know and I will consider a reasonable extension, provided it does not jeopardize the 45-day motion-to-compel deadlines under CCP sections 2030.300(c) and 2031.310(c), which begin running as early as **July 27, 2026**.

CATEGORY 1

BLANKET REFUSALS TO IDENTIFY PRE-DISCHARGE COMPLETIONS (HOPE SROG No. 6; Palacios SROG No. 6)

Deficiency: Both defendants refused to respond to interrogatories asking them to identify parolees who were determined to have completed treatment prior to parole discharge. HOPE’s response to its SROG No. 6 states: "Pursuant to the above objections, Responding Party cannot and will not respond to this special interrogatory." Palacios’s response to her SROG No. 6 uses identical language.

The primary objection cited is third-party privacy (*Younger v. Berkeley City Council* (1975) 45 Cal.App.3d 825). However, the interrogatory as propounded expressly permits anonymized identifiers ("e.g., Client A, Client B") and states that "names are not required." The remaining objections—overbreadth, burden, attorney-client privilege, work product, and expert opinion—are inapplicable to a factual question about whether any parolee has ever been deemed to have completed treatment prior to discharge.

This information is directly relevant to Plaintiff's core allegation that HOPE applies a blanket retention policy under which no parolee is determined to have completed treatment prior to parole discharge. If no such parolee exists, that fact proves the policy. If some exist, the identities of the clinicians who made those determinations and the criteria applied are relevant to Plaintiff's claim that his own treatment-completion determination was not individualized.

The privacy objection is not sustainable for de-identified aggregate data. (See *Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 35 [privacy interest must be balanced against need for discovery]; *Britt v. Superior Court* (1978) 20 Cal.3d 844, 855-856 [privacy right is not absolute and must yield to compelling need].) Anonymized identifiers eliminate any privacy concern because no individual can be identified from the response.

What I demand: Complete, verified responses to HOPE SROG No. 6 and Palacios SROG No. 6 as propounded, using anonymized identifiers and providing the four data points requested (date of completion determination, clinician, parole-discharge date, and treatment phase at completion). If no parolee was ever determined to have completed treatment prior to parole discharge, a response stating that fact is sufficient.

CATEGORY 2

FAILURE TO PROVIDE FACTUAL SUPPORT FOR RFA DENIALS (HOPE FROG 17.1)

Deficiency: HOPE's response to Form Interrogatory 17.1 states, in substance: "Responding Party does not have enough information to respond at this time."

Form Interrogatory 17.1 requires the responding party, for each Request for Admission response that is not an unqualified admission, to: (a) state the number of the request; (b) state all facts on which the response is based; (c) state the names, addresses, and telephone numbers of all persons who have knowledge of those facts; and (d) identify all documents that support the response.

HOPE denied or qualified numerous Requests for Admission, including RFA Nos. 5, 7, 8, and others going to the existence of a blanket retention policy, knowledge of the Dwyer decision, regulatory compliance, revenue incentives, and homework record-keeping. For each of those denials, HOPE was required to identify the factual basis. A responding party that has already taken a position on an RFA—by denying it—cannot simultaneously claim it lacks sufficient information to identify the facts supporting that denial. That is internally contradictory and violates CCP section 2030.210(a), which requires that each answer be "as complete and straightforward as the information reasonably available to the responding party permits."

I note that the failure to provide factual support for RFA denials in FROG 17.1 responses is directly relevant to Plaintiff's ability to seek cost-of-proof sanctions under CCP section 2033.420 at trial.

What I demand: Complete, verified responses to FROG 17.1 for each RFA response that was not an unqualified admission, identifying the specific facts, persons with knowledge, and supporting documents for each denial or qualification. "Does not have enough information" is not a Code-compliant response. If Palacios's FROG 17.1 responses contain the same or a similar deficiency, I request supplemental responses from Palacios as well.

CATEGORY 3

EVASIVE AND CONCLUSORY RESPONSES
(HOPE SROG Nos. 11, 12, 30; Palacios SROG Nos. 7, 8)

A. HOPE SROG No. 11 (reasons for non-completion at each CTM):

HOPE's response provides a list of CTM dates with the same conclusory statement for each—that Plaintiff "had not completed Block I of treatment" (or Block II for the most recent CTM)—without identifying the specific clinical criteria applied at each CTM, the specific deficiency identified in Plaintiff's performance, whether a written individualized assessment was prepared, or whether any clinician recommended completion. An interrogatory asking for "all reasons" requires identification of actual facts and clinical judgments, not a bare legal conclusion. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783-784.)

What I demand: For each CTM, identify the specific clinical criteria applied, the specific deficiency or deficiencies identified in Plaintiff's performance, whether a written individualized assessment was prepared, and whether any clinician at that CTM recommended or considered recommending treatment completion.

B. HOPE SROG No. 12 (facts supporting individualized-judgment claim):

HOPE's response states only that its recommendations "were based on the individualized factors of his completion of the relevant curriculum and not based on 'a general policy applicable to all parolees.'" This is a legal conclusion, not a factual response. No specific clinical observations, risk-instrument scores, behavioral assessments, or other individualized data points are identified.

What I demand: Identify each specific fact supporting the claim of individualized clinical judgment, including which dynamic risk instruments were reviewed, what scores were observed, what behavioral observations were considered, and who made the determination at each CTM.

C. HOPE SROG No. 30 (post-Dwyer policy review actions):

HOPE's response states: "Responding Party is not aware of 'the DWYER decision' or a 'BLANKET RETENTION POLICY.'" This response is not credible. HOPE's own Executive Director of Clinical Training, Dr. Cristina Loree, testified under oath in *In re Dwyer*, San Mateo County Superior Court Case No. SC-080355A, on or before March 20, 2023. The defined terms were set forth with specificity in the interrogatory definitions. A corporate respondent cannot credibly disclaim awareness of its own employee's sworn testimony in a judicial proceeding.

What I demand: Withdraw the denial of awareness and provide a substantive response identifying all actions HOPE took (or considered taking) after becoming aware of the Dwyer decision to review, modify, or discontinue the blanket retention policy.

D. Palacios SROG No. 7 (reasons for not recommending treatment completion):

Palacios's response states only that "Plaintiff had not completed the treatment phases as required" and references generic documents without identifying specific clinical criteria or specific deficiencies at each CTM she attended.

What I demand: For each CTM Palacios attended, identify the specific clinical criteria she applied and the specific deficiency she identified in Plaintiff's progress.

E. Palacios SROG No. 8 (clinical opinion re approaching completion):

Palacios responded: "No, because Plaintiff had not completed required treatment phases." This is circular. The interrogatory asks whether she formed any clinical opinion about whether Plaintiff was *approaching* the criteria for completion—and if not, to state all reasons. "He hadn't completed treatment" is not a reason for never forming an opinion about his progress toward completion over a five-year period.

What I demand: Identify the specific clinical reasons Palacios did not form any opinion that Plaintiff was approaching completion at any time during the five-year relevant period, including any clinical assessments, risk scores, or progress metrics that informed that conclusion.

CATEGORY 4

BLANKET REFUSALS ON ESI-PROTOCOL GROUNDS (Palacios RFP Nos. 3–7, 9; HOPE RFP Nos. 15, 18, 35)

Deficiency: Both defendants refused to provide any substantive response to requests for production of electronic communications—including emails, text messages, and calendar entries—by invoking the objection that Plaintiff "has failed to meaningfully meet and confer regarding an ESI protocol." CRC 3.724 contemplates early discussion of ESI issues but does not authorize a responding party to refuse all ESI production until a protocol is agreed upon. The Discovery Act requires a response within 30 days of service (CCP § 2031.260(a)). Moreover, neither defendant initiated an ESI meet-and-confer at any time before or after serving these responses.

To facilitate resolution, I propose the following ESI protocol:

Custodians: Katie Palacios; Drew Kingston; Bernadette Marie Tassone; any HOPE clinician or staff member who communicated with CDCR/DAPO agents about Plaintiff during the relevant period.

Date range: March 1, 2021, through the present.

Search terms: "Newanforbi" OR "Brendan" OR "BNN" (plus any internal identifier HOPE uses for Plaintiff).

Format: Native format or searchable PDF, at the producing party's election.

Phased production: Palacios custodian files first, followed by Kingston, then remaining custodians.

What I demand: (1) Withdrawal of the blanket ESI-protocol objection; (2) substantive, verified further responses to Palacios RFP Nos. 3–7 and 9, and HOPE RFP Nos. 15, 18, and 35; and (3) production of responsive ESI within 30 days under the protocol proposed above, or a counterproposal within 10 days.

CATEGORY 5

BLANKET REFUSALS TO IDENTIFY STATEMENTS
(Palacios SROG Nos. 14 and 15)

Deficiency: Palacios refused to respond to SROG No. 14 (statements to Plaintiff about treatment progress, homework completion, phase progression, and treatment completion) and SROG No. 15 (statements to CDCR/DAPO agents regarding Plaintiff), stating that "it is not possible to identify every statement" over the relevant period. The interrogatories do not ask for literally every casual utterance. They ask for statements concerning specific subject matters at the core of this litigation. A clinical director who supervised Plaintiff for over five years has CTM reports, progress notes, and treatment plans that document these communications. CCP section 2030.220(c) requires a reasonable and good-faith effort to obtain the information, including a review of her own records.

What I demand: Supplemental responses identifying, at minimum, all statements documented in CTM records, progress reports, treatment plans, Form 3043 reports, and any other records in Palacios's possession or accessible to her, plus any additional statements she recalls.

CATEGORY 6

DOCUMENTS CONDITIONED ON PROTECTIVE ORDER
(Multiple HOPE and Palacios RFPs)

Status: Numerous RFP responses from both defendants stated that responsive documents would be produced "upon the entry of a protective order." As you know, the parties signed the Stipulated Protective Order on June 13–14, 2026, and you indicated you would file it with the Court. I understand the Court must enter the order before confidential documents are produced.

I am not at this time seeking a motion to compel on these items. However, I want to establish a clear timeline. Once the Court enters the Stipulated Protective Order, I request that all documents subject to the protective-order condition be produced within **fifteen (15) calendar days** of entry. If you anticipate needing additional time, please let me know so we can agree on a reasonable schedule.

Please also confirm: (1) the date the Stipulated Protective Order was filed with the Court; and (2) whether you are aware of any issue that might delay the Court's entry of the order.

I have attempted to be specific about each deficiency so that your clients can evaluate these items efficiently. I am not seeking to create unnecessary burdens. Where responses are adequate, I have not raised them. Where responses are deficient, I have explained why and stated precisely what I am requesting.

I am available to continue this meet-and-confer by email at your convenience. If your clients are willing to provide supplemental responses to some or all of these items, I would appreciate notice of that intent so I can prioritize accordingly.

If I do not receive supplemental responses or a substantive written response to this letter by **June 24, 2026**, I intend to file motions to compel further responses under CCP sections 2030.300 and 2031.310. If I am forced to file such motions, I will seek monetary sanctions under CCP sections 2030.300(d) and 2031.310(h).

I look forward to your response.

Respectfully,

Brendan Ngehsi Newanforbi
Plaintiff, In Pro Per

cc: Kim Schmitt (kschmitt@sims-law.net)
June Meinecke (june@sims-law.net)